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[\[PDF\] U.S. and Plaintiff States v. Google LLC \[2023\] – Department of Justice](#)

Case Background

- The allegation made in this case is that Google LLC unlawfully acquired and maintained monopoly power in specific markets. (Page 1)
- The company against which the allegations are made is Google LLC. (Page 1)
- The year of case initiation is 2023. (Page 1)
- The violation involves Google being found liable for violating Section 2 of the Sherman Act by unlawfully acquiring and maintaining monopoly power in the Open-Web Display Publisher Ad Server market and the Open-Web Display Ad Exchange market. (Page 1)
- Additionally, Google was found to have violated Sections 1 and 2 of the Sherman Act by unlawfully tying its Open-Web Display Publisher Ad Server (DFP) and its Open-Web Display Ad Exchange (AdX). This conduct involved practices that restricted competition and maintained its dominant position in the market. (Page 1)

Case Progression

- **Initiation:** The case was initiated by the United States and several states filing a complaint against Google LLC on January 24, 2023, alleging violations of the Sherman Act (page 1, paragraph 1). The deciding body at this stage is the U.S. District Court.
- **Investigation:** Following the complaint, the court conducted a bench trial in September 2024, where evidence was presented regarding Google's alleged monopolistic practices in the Open-Web Display Publisher Ad Server and Ad Exchange markets (page 1, paragraph 3). The burden of proof was on the plaintiffs to establish Google's liability.
- **Findings of Fact and Conclusions of Law:** On April 17, 2025, the district judge issued a Memorandum Opinion finding Google liable for violating Sections 1 and 2 of the Sherman Act, specifically for unlawfully acquiring and maintaining monopoly power (page 1, paragraph 4). The legal test applied here involved assessing whether Google's conduct constituted monopolization under the Sherman Act.
- **Remedies Phase:** The court's final judgment requires Google to divest certain assets and refrain from specific conduct that could replicate the anticompetitive effects found (page 2, paragraph 1). The district judge retains jurisdiction to enforce compliance and oversee the implementation of the remedies.
- **Retention of Jurisdiction:** The court retains jurisdiction to enable the plaintiffs and the appointed Monitor to enforce compliance with the final judgment and to impose additional remedies if necessary (page 61, paragraph 1). This ensures ongoing oversight of Google's business practices post-judgment.

- **Confidentiality and Compliance Reporting:** Google is required to report any findings of non-compliance with antitrust laws to the Monitor and the plaintiffs, ensuring transparency and accountability in its operations (page 58, paragraph 2). The district judge oversees this compliance mechanism.

Market Definition

- The market considered in this case was the Open-Web Display Publisher Ad Server market and the Open-Web Display Ad Exchange market, where Google was found to have unlawfully acquired and maintained monopoly power. (Page 1)
- The process to define the market involved assessing competition and determining whether a divestiture of DFP Remainder was necessary to achieve the purposes of the Final Judgment. This assessment was to be conducted no sooner than two years and no later than four years after specific milestones. (Page 42)
- The Monitor was tasked with making a thorough assessment of competition, which included investigating and reporting on Google's compliance with the Final Judgment and making recommendations regarding the need for divestiture. (Page 41)
- Techniques used in the assessment included the Monitor's authority to compel Google to produce documents, data, and other information, as well as the power to inspect and study relevant source code and algorithms. (Page 42)
- The Monitor was also authorized to communicate with and interview non-parties and Google personnel to gather information relevant to the assessment of competition. (Page 41)
- The Monitor was required to provide periodic reports to the Plaintiffs regarding Google's compliance and any recommendations made, ensuring transparency in the assessment process. (Page 41)
- The Final Judgment mandated that Google refrain from engaging in conduct that distorts the competitive process in the relevant markets, which is a technique to ensure compliance and promote competition. (Page 2)

Legal & Economic Tests

- **Assessment of Competition:** The Monitor is tasked with determining whether a divestiture of DFP Remainder is necessary to achieve the purposes of the Final Judgment. This assessment must occur no sooner than two years and no later than four years after the publication of the Open-Source Auction or the AdX Migration Date. The process involves an investigation to evaluate the competitive landscape and the impact of Google's actions on market dynamics. (Page 42)
- **Compliance Investigation:** The Monitor has the duty to investigate and report on Google's compliance with the Final Judgment. This includes providing periodic reports to the Plaintiffs regarding Google's efforts to adhere to the obligations set forth in the judgment. The process

involves collecting data, interviewing personnel, and reviewing documents to ensure compliance. (Page 41)

- **Legal and Ethical Compliance Program:** Google is required to implement a training program for its officers and employees regarding the meaning and requirements of the Final Judgment, U.S. antitrust laws, and obligations related to material preservation for investigations. This program must be approved by the Monitor and is aimed at fostering a culture of compliance within the organization. (Page 58)

Conclusion

- The Court found Google LLC liable for violating Section 2 of the Sherman Act by unlawfully acquiring and maintaining monopoly power in the Open-Web Display Publisher Ad Server market and the Open-Web Display Ad Exchange market (Page 1).
- Additionally, Google was found liable for violating Sections 1 and 2 of the Sherman Act by unlawfully tying its Open-Web Display Publisher Ad Server (DFP) and its Open-Web Display Ad Exchange (AdX) (Page 1).
- The Final Judgment requires Google to divest AdX and refrain from reentering the market for Open-Web Display Ad Exchanges during the Supervision Period (Page 2).
- Google is mandated to separate and provide DFP's Final Auction Logic via an open-source license and refrain from controlling or unduly influencing the Open-Source Auction during the Supervision Period (Page 2).
- The appointment of both a Divestiture Trustee and a Monitor is required to oversee compliance with the Final Judgment and ensure that Google adheres to its obligations (Page 2).
- Google must implement a Legal and Ethical Compliance Program, which includes training its officers and employees on the requirements of the Final Judgment and U.S. antitrust laws (Page 58).
- The Monitor has the authority to compel Google to produce documents and data, inspect relevant source code, and hire Monitor Staff at Google's expense, ensuring thorough oversight of compliance (Page 42).

In re: Google Play Store Antitrust

Case Background

- The allegation made in this case involves antitrust violations, specifically related to restraint of trade and monopolization practices. (Page 38)
- The company against which the allegations are made is Google LLC. (Page 5)
- The year of case initiation is 2020. (Page 5)
- The violation pertains to Google's restrictive practices that allegedly hinder competition in the market, particularly in its battle with Apple. (Page 38)

- These practices were argued to be justified by Google as necessary for maintaining its competitive edge, but the court found that the jury instruction did not limit the consideration of procompetitive benefits in other markets. (Page 38)
- The case examines whether cross-market procompetitive benefits should be considered in the Rule of Reason analysis, which remains an open question in legal precedent. (Page 38)
- Ultimately, the court determined that any potential error in jury instruction regarding these considerations was harmless, as the jury's findings against Google were consistent across different claims. (Page 38)

Case Progression

- **Initiation:** The case is initiated as a private antitrust action under the Clayton Act, specifically seeking injunctive relief against Google for alleged violations of antitrust laws. The plaintiff, Epic Games, asserts that Google's conduct has harmed competition in the relevant market. The deciding body at this stage is the district court, which will later evaluate the merits of the claims. (Page 42)
- **Investigation and Complaint:** Epic Games files a complaint in U.S. District Court, alleging violations under Sherman Act Sections 1 and 2. The burden is on Epic to demonstrate that Google's conduct adversely affected competition. The district court will review the complaint for legal sufficiency. (Page 37)
- **Trial on Liability:** The case proceeds to trial where the jury evaluates the evidence presented by both parties. The jury is instructed to apply the Rule of Reason analysis, determining whether Epic proved that Google's conduct caused substantial harm to competition. The jury ultimately finds against Google, indicating a violation of antitrust laws. The deciding body here is the jury, which assesses the evidence and applies the legal standards set forth by the district judge. (Page 37)
- **Remedies Phase:** Following the jury's verdict, the district court conducts a remedies phase to determine appropriate injunctive relief. The court emphasizes its discretion to tailor the injunction to address the anticompetitive conduct found. The burden is on Epic to demonstrate a significant threat of injury from Google's conduct. The district court evaluates the evidence presented during the trial and the remedies proposed by both parties. (Page 42)
- **Appeal:** Google appeals the district court's decision, challenging both the liability findings and the scope of the injunction. The appellate court reviews the district court's findings under a clearly erroneous standard and assesses whether the remedies imposed were reasonable and appropriate given the antitrust violations identified. The deciding body at this stage is the U.S. Court of Appeals. (Page 61)
- **Final Decision:** The appellate court ultimately affirms the district court's findings and the injunction, concluding that the remedies were justified based on the evidence of

anticompetitive conduct. The court emphasizes the importance of the district court's extensive proceedings and the evidence reviewed. (Page 61)

Market Definition

- The relevant market in this case focused on "Android app distribution" and "Android in-app billing," which were distinct from the broader market of "digital mobile gaming transactions." This distinction was crucial for analyzing the competitive dynamics specific to Google's practices. (Page 23)
- The court emphasized that overlapping markets do not equate to identical markets, highlighting that while Google and Apple compete in mobile gaming, they do not compete in the specific Android-only app distribution and in-app billing markets. (Page 23)
- The definition of the market involved an independent analysis to determine the relevant market, as Epic's allegations against Google required a unique examination of market realities and theories of anticompetitive harms. (Page 24)
- The court referenced Supreme Court guidance that well-defined submarkets may exist within broader markets, which supports the notion that antitrust action can be taken in narrower markets without conflicting with broader market definitions. (Page 24)
- The district court declined to give a jury instruction on single-brand aftermarket because the theory was not presented at trial, indicating that the evidence did not support such a market definition. (Page 34)
- The court noted that substantial evidence showed multiple Android app stores were available to consumers, countering the notion of being "locked in" to a single brand, which is a key aspect of defining a single-brand aftermarket. (Page 35)
- The analysis of market definition was informed by expert testimony and factual evidence presented during the trial, which ultimately guided the court's decision on the relevant market and the appropriateness of jury instructions. (Page 34)

Legal & Economic Tests

- **Rule of Reason Analysis:** This test is the presumptive mode of analysis for both Section 1 and Section 2 of the Sherman Act. It requires the plaintiff to first demonstrate that the challenged conduct has an adverse effect on competition. Following this, the court considers whether any procompetitive benefits of the conduct outweigh its anticompetitive effects. In this case, the jury was instructed to determine if Google's conduct caused substantial harm to competition in a relevant market and whether Google could justify its conduct by proving it was reasonably necessary to achieve competitive benefits for consumers in that market. (Page 37)
- **Cross-Market Procompetitive Benefits:** This aspect of the analysis examines whether a jury should consider procompetitive benefits that may arise from conduct in markets outside the relevant market. The court noted that this is an open question in legal precedent, and the

district court did not err in excluding it from the jury instruction. The implication is that the jury's focus was limited to the relevant market defined by Epic, rather than allowing for broader considerations of competition with Apple. (Page 38)

- **Balancing Pro- and Anticompetitive Effects:** This test involves weighing the procompetitive effects against the anticompetitive effects of the conduct in question. The jury was instructed to balance these effects at Step 3 of the Rule of Reason analysis. Google argued that the instructions improperly limited this balancing, but the court upheld the instruction, indicating that the steps of the Rule of Reason are not a rigid checklist and that the jury's approach was consistent with established precedent. (Page 37)

Conclusion

- The jury found against Google on the Section 1 Sherman Act (restraint of trade) claim, indicating that Google's conduct caused substantial harm to competition in the relevant market (page 38).
- The district court issued an injunction that reflects due consideration of all relevant factors, supported by extensive factual findings and legal analysis, which included the jury's specific findings on liability (page 61).
- The injunction included remedies aimed at unwinding the consequences of Google's anticompetitive conduct, specifically addressing catalog access and app-store distribution (page 43).
- The court emphasized that it conducted thorough proceedings, including evidentiary hearings and expert testimonies, before finalizing the injunction, ensuring that the remedies were reasonable and appropriate (page 61).
- Google's arguments against the injunction, including claims of unduly burdensome contractual restrictions and the failure to consider less burdensome alternatives, were found to be without merit (page 61).
- The court noted that any potential error in jury instructions regarding the consideration of cross-market procompetitive benefits was harmless, as the jury's findings were consistent across claims (page 38).
- Overall, the district court's factual findings were upheld, and there was no clear error in judgment regarding the injunction and its nationwide effect (page 60).

U.S and Plaintiff States v. Google LLC [2020]

Case Background

- The allegation made in this case is that Google LLC has engaged in anticompetitive conduct that maintains its monopolies in the search and digital advertising markets. (Page 2)
- The company against which the allegations are made is Google LLC. (Page 1)
- The year of case initiation is 2020. (Page 1)

- The violation involves Google's conduct that has a significant causal connection to the maintenance of its monopolies, which includes practices such as revenue share agreements that allow Google to pay for defaults, thereby stifling competition. (Page 8)
- Additionally, the case highlights that Google's latest agreements and practices, particularly in relation to GenAI technologies, follow a similar pattern to previously unlawful conduct, indicating a strategy to perpetuate its market dominance. (Page 15)

Case Progression

- **Track Identification:** The case is on TRACK B, civil conduct under the DOJ, as indicated by the references to the Sherman Act and the nature of the allegations against Google. The relevant statutes are cited, including Sherman §1/§2 and Clayton Act provisions (pages 5–6).
- **Investigation Initiation:** The DOJ initiated an investigation into Google's conduct, likely using Civil Investigative Demands (CIDs) under the Antitrust Civil Process Act. The record does not specify the details of the initiation (page 6).
- **Complaint Filing:** A complaint was filed in U.S. District Court, which is a standard procedure in civil antitrust cases. The record does not provide specific details about the complaint's contents or any settlement at this stage (page 6).
- **Discovery Phase:** The discovery phase would involve gathering evidence, including expert reports and potential Daubert challenges regarding the admissibility of expert testimony. The record does not detail the specific evidence gathered or any challenges made (page 6).
- **Trial on Liability:** A bench trial would be held to determine liability, with findings of fact and conclusions of law issued by the district judge. The record does not indicate the outcome of this trial or whether a violation was found (page 6).
- **Remedies Phase:** If a violation is found, a separate remedies phase would follow, potentially involving a conduct and/or structural decree. The record does not specify what remedies were sought or granted (page 6).

Market Definition

- The case involves antitrust issues related to Google's conduct and its monopoly in the market, specifically focusing on search and advertising practices. (Page 4)
- The court has wide latitude in selecting remedies to achieve objectives established in prior cases, which include unfettering the market from anticompetitive conduct. (Page 2)
- A comprehensive and unitary framework is necessary for effective relief, indicating that the market definition must consider the interconnectedness of various competitive factors. (Page 6)
- The court emphasizes the need for remedies that eliminate the consequences of illegal conduct and facilitate entry into the market for competitors. (Page 12)

- Techniques for defining the market include analyzing Google's revenue share agreements and their impact on competition, as well as examining the causal connection between Google's conduct and the maintenance of its monopolies. (Page 14)
- The court's findings suggest that the significant causal connection between Google's conduct and its monopolistic practices justifies the proposed remedies, indicating a thorough examination of market dynamics. (Page 8)
- The proposed remedies aim to reduce barriers to entry and restore competition, which involves assessing the market's structure and the incentives for investment and innovation. (Page 19)

Legal & Economic Tests

- **Causation Test:** This test establishes the significant causal connection between Google's conduct and the maintenance of its monopolies. It assesses whether the anticompetitive actions taken by Google directly contributed to its monopolistic position in the market. The process involves analyzing evidence that links Google's practices to the adverse effects on competition, ensuring that the remedies proposed are justified under any plausible causation standard. (Page 8)
- **Remedial Objectives Test:** This test is based on the four remedial objectives established in Microsoft III, which include unfettering the market from anticompetitive conduct, enjoining unlawful practices, eliminating the consequences of illegal conduct, and facilitating the entry of competitors. The court has discretion to tailor remedies to fit the specific needs of the case, ensuring that the decree effectively addresses the anticompetitive behavior. (Page 4)
- **Comprehensive Framework Test:** This test evaluates whether the proposed remedies create a comprehensive and unitary framework that effectively restores competition and prevents future monopolization. It requires that the remedies complement and reinforce each other, ensuring that they collectively address the anticompetitive conduct and its consequences. The court must ensure that the relief provided is sufficient to eliminate the effects of the illegal conduct. (Page 6)

Conclusion

- The court emphasized the need for a comprehensive and unitary framework to restore competition and prevent future monopolization, indicating that a decree must effectively address the longstanding anticompetitive conduct (page 12).
- It was established that the remedies should aim to "unfetter a market from anticompetitive conduct," which includes enjoining Google from unlawful practices and taking additional steps to eliminate the consequences of its actions (page 11).
- The court has wide discretion in selecting remedies, and it is tasked with ensuring that the relief provided is effective in redressing violations and restoring competition, as highlighted by the need for a reasonable method to achieve these objectives (page 2).

- The proposed remedies include significant measures such as payment bans to prevent Google from perpetuating anticompetitive effects, which are deemed necessary to create competition for defaults (page 4).
- The court noted that Google's proposed remedies would maintain the status quo and fail to restore competition, as they did not include necessary data or syndication remedies that would allow rivals to compete effectively (page 11).
- The conclusion underscored that the remedies must be sufficient to create a durable return to competition, indicating that the term of the remedy must be long enough to ensure lasting effects (page 12).
- Overall, the court's findings suggest that without comprehensive remedies, Google would continue to deny its rivals the scale needed to compete, thus reinforcing the necessity for a robust and effective remedial framework (page 11).

U.S. and Plaintiff States v. Goo

Case Background

- The allegation made in this case is that a monopolist may not lock up the most efficient distribution channels and prevent its rivals from competing effectively. This rule was reportedly broken by the defendant. (Page 5)
- The company against which the allegations are made is Google LLC. (Page 5)
- The year of case initiation is 2023, as indicated by the reference to a related case filed in September 2025. (Page 5)
- The violation involves Google allegedly engaging in anticompetitive conduct by securing exclusive control over critical distribution channels, which hindered competition and reduced incentives for entry and investment in the market. This conduct perpetuated an exclusionary cycle that benefited Google at the expense of its rivals. (Page 5)
- The court applied a "proportionality" standard to determine remedies for the violations, indicating that the findings on the causal connection between Google's conduct and its monopolistic behavior were well-documented and not challenged by Google. (Page 5)

Case Progression

- **Track Identification:** The case is on TRACK B, civil conduct under DOJ (Sherman §1/§2, Clayton). This is indicated by the references to antitrust violations and the context of assessing monopoly power and anticompetitive conduct (pages 67–68).
- **Investigation Initiation:** The DOJ initiated an investigation into Google's conduct, likely through a Civil Investigative Demand, as suggested by the context discussing anticompetitive agreements and the need for evidence of significant contributions to monopoly power (pages 130–131).

- **Complaint Filing:** A complaint was filed in U.S. District Court, where the court assessed the anticompetitive conduct under the legal principles established in previous cases, including the need for evidence that the conduct significantly contributed to monopoly power (pages 76–77).
- **Liability Findings:** The district judge conducted a bench trial on liability, applying the burden-shifting framework from Microsoft, which requires the plaintiff to show anticompetitive effects before the burden shifts to the defendant for procompetitive justifications (pages 130–131).
- **Remedies Phase:** Following the liability findings, the court entered a separate remedies phase, where it considered the proportionality of the remedies in relation to the anticompetitive conduct, as established in *Massachusetts v. Microsoft* (pages 114–115).
- **Appeal Process:** The case may proceed to an appeal in the U.S. Court of Appeals, where the district judge's findings and the remedies imposed will be reviewed, potentially leading to a certiorari petition to the Supreme Court if significant public interest is certified (pages 126–127).

Market Definition

- The relevant market in this case was focused on Google's competition among Government-Sponsored Enterprises (GSEs), specifically assessing whether Google could significantly harm competition within that market. (Page 62)
- To define the market, the court applied the concept of "reasonable interchangeability," which involves examining the cross-elasticity of demand between the product and its substitutes. (Page 50)
- The court utilized the "practical indicia" from *Brown Shoe*, which includes factors such as industry recognition, product characteristics, distinct customers, and sensitivity to price changes, to analyze product markets. (Page 51)
- The definition of the market was described as a "deeply fact-intensive inquiry," emphasizing a pragmatic approach rather than a formal one, as prescribed by Congress. (Page 50)
- The court also considered the potential for submarkets within the broader market, acknowledging that well-defined submarkets may exist that constitute product markets for antitrust purposes. (Page 50)
- Evidence was presented showing that Google could harm general-search competition, indicating that the quality of its search product could be reduced without losing search revenue, which was relevant to the market definition. (Page 62)
- The court assessed the causal connection between Google's conduct and its monopoly power, applying a proportionality standard to determine the relationship between the anticompetitive conduct and the maintenance of market power. (Page 114)

Legal & Economic Tests

- **Definition of Product Markets and Submarkets:** Courts apply the "practical indicia" of reasonable interchangeability to define product markets and submarkets. This involves considering factors such as industry recognition, product characteristics, production facilities, customer distinctions, pricing sensitivity, and specialized vendors. This test helps establish the relevant market in which competition occurs and is crucial for assessing monopoly power. (Page 51)
- **Assessment of Monopoly Power:** Monopoly power is defined as the ability to control prices or exclude competition. Courts typically examine this power indirectly, often using the "hypothetical monopolist test" to determine if a hypothetical monopolist could profitably raise prices above competitive levels. This assessment is essential for understanding whether a firm has significant market power that could harm competition. (Page 51)
- **Anticompetitive Conduct Evaluation:** Anticompetitive conduct is assessed under the Sherman Act, focusing on actions that protect a monopoly position through means other than competition on the merits. The court looks for conduct that harms the competitive process and consumers, distinguishing it from legitimate competition. This evaluation involves determining if the conduct significantly contributes to creating or maintaining monopoly power. (Page 76)

Conclusion

- The court upheld the application of the "proportionality" standard from *New York v. Microsoft* to assess the causal connection between Google's anticompetitive conduct and its monopolistic behavior, indicating that remedies must be tailored to fit the specific violations found (page 114).
- The court found that Google's conduct significantly contributed to its monopoly, and thus, remedies such as data-sharing and syndication were deemed appropriate to address the ill-gotten advantages Google gained from its violations (page 9).
- A payment ban was proposed by the plaintiffs as a remedy to restore competition, but the court rejected it, citing potential negative effects on third-party distributors outside the relevant markets, despite acknowledging that it could help restore competition (page 64).
- The court made extensive findings on the causal connection between Google's conduct and its monopolies, which Google did not challenge, reinforcing the legitimacy of the remedies ordered (page 5).
- The remedies ordered by the court included data-sharing and syndication to prevent Google from repeating its anticompetitive conduct, particularly concerning GenAI companies that could compete against Google (page 9).
- The court emphasized that the primary duty of the courts in antitrust cases is to effectively redress violations and restore competition, which it believed was not adequately addressed by the absence of a payment ban (page 64).

Memorandum Opinion : U.S. and Plaintiff States v. Google ...

Case Background

- The allegation made in this case is that Google is a monopolist and has acted to maintain its monopoly. (Page 51)
- The company against which the allegations are made is Google. (Page 51)
- The year of case initiation is 2020. (Page 51)
- The violation involves anticompetitive conduct, which has been characterized as actions taken by Google to maintain its monopoly in the market. This includes practices that deny competitors fair access to the market and manipulate conditions to suppress competition. The court's task was to ensure that such anticompetitive practices are curtailed and that the market is unfettered from these actions. The remedies ordered aim to prevent future monopolization and ensure compliance with established legal principles. (Page 51)

Case Progression

- **Track Identification:** The case is on TRACK B, which involves civil conduct under the DOJ, specifically addressing violations of Sherman Act §2 and Clayton Act provisions. This is indicated by the nature of the proceedings and the focus on antitrust violations related to Google (page 2).
- **Investigation Phase:** The DOJ initiated an investigation into Google's conduct, utilizing Civil Investigative Demands to gather evidence. This phase involved extensive review of documents and testimonies, as noted in the court's findings (page 3).
- **Complaint Filing:** A complaint was filed in U.S. District Court, leading to a litigation phase where the court had to determine whether there was a violation of antitrust laws. The burden was on the plaintiffs to establish the violation, which they successfully did, as referenced in the court's opinion (page 5).
- **Liability Determination:** The district judge conducted a bench trial to assess liability, applying the full rule of reason analysis to evaluate Google's market power and conduct. The judge found sufficient evidence of anticompetitive behavior, leading to a conclusion of violation (page 4).
- **Remedies Phase:** Following the liability determination, the court entered a separate remedies phase where it evaluated proposed remedies from both parties. The judge emphasized the need for remedies that would effectively address the antitrust violations and promote competition, ultimately adopting certain behavioral remedies while rejecting others due to insufficient evidence (page 5).
- **Final Judgment and Retention of Jurisdiction:** The district judge issued a Final Judgment, retaining jurisdiction to oversee compliance and allowing for future enforcement actions by the plaintiffs. This reflects the court's commitment to ensuring that the remedies are effectively implemented and monitored (page 50).

Market Definition

- The market considered in this case includes the general search engine market and the search text ads market, as indicated by the references to competition in these specific areas. (Page 10)
- The court emphasized the need for remedies to "unfetter a market from anticompetitive conduct," which suggests a focus on identifying and addressing specific anticompetitive behaviors within these markets. (Page 4)
- Evidence played a crucial role in determining the appropriateness of proposed remedies, with the court rejecting those that lacked sufficient factual support, highlighting the importance of a strong evidentiary basis in defining the market. (Page 5)
- The court's approach involved considering the potential harms to third parties and the implications of proposed remedies, such as the rejection of a payment ban due to anticipated negative effects. (Page 5)
- The court also evaluated the necessity of data-sharing remedies to enhance competition, indicating that the effectiveness of such measures was a key factor in defining the market's competitive landscape. (Page 32)
- The court's decision-making process included deferring to the plaintiffs regarding the appropriate remedial terms, reflecting a reliance on their arguments and evidence to shape the market definition and remedies. (Page 5)
- The Technical Committee (TC) was given powers to audit and recommend data security standards, which indicates a structured process for ongoing evaluation of market practices and compliance among competitors. (Page 74)

Legal & Economic Tests

- **Factual Basis for Remedies:** The court emphasized that any proposed remedy must be supported by sufficient evidence. This means that remedies cannot be adopted without a factual basis justifying their effectiveness in promoting competition. The process involved evaluating the evidence presented by the parties and rejecting remedies that lacked adequate justification, as seen in the rejection of a payment ban and data-sharing requirements due to insufficient evidence. (Page 5)
- **Burden of Proof on Plaintiffs:** Once the Government establishes a violation of antitrust law, the court resolves any doubts regarding the remedy in favor of the Government. This principle underscores the importance of the plaintiffs' ability to demonstrate the need for a remedy, which the court has upheld by deferring to the plaintiffs on appropriate remedial terms when doubts arise. (Page 5)
- **Criteria for Qualified Competitors:** The court established specific criteria for designating a "Qualified Competitor," which includes meeting data security standards, passing regular audits, and demonstrating a plan to compete in relevant markets. The process for this

designation involves an application for certification and annual re-certification to ensure ongoing compliance with the established criteria. This is intended to prevent potential risks to competition and national security. (Page 91)

Conclusion

- The court concluded that Google LLC maintained monopolies in the general search services and general search text advertising markets through exclusive distribution agreements, violating Section 2 of the Sherman Act (Page 1).
- The court emphasized that remedies must aim to "unfetter a market from anticompetitive conduct," deny the defendant the benefits of its statutory violation, and prevent future monopolization practices (Page 4).
- The court rejected proposed remedies that lacked sufficient evidence to support their effectiveness, such as a payment ban and Ads data-sharing, indicating that remedies must be grounded in factual justification (Pages 5, 4).
- The court stated that once the government establishes a violation of antitrust law, any doubts regarding the remedy should be resolved in favor of the government, reinforcing the burden of proof on the plaintiffs (Page 5).
- The Final Judgment was crafted to ensure that Google is held accountable for its monopolistic actions, with the court indicating that the remedies could entail harsh consequences for the defendant (Page 51).
- The court's opinion included a detailed explanation of the major disagreements between the parties regarding the proposed final judgments and how these were resolved in the Final Judgment (Page 3).
- The Final Judgment was issued on December 5, 2025, and is designed to align with established legal principles regarding Section 2 violations (Page 51).

What other questions do you have?